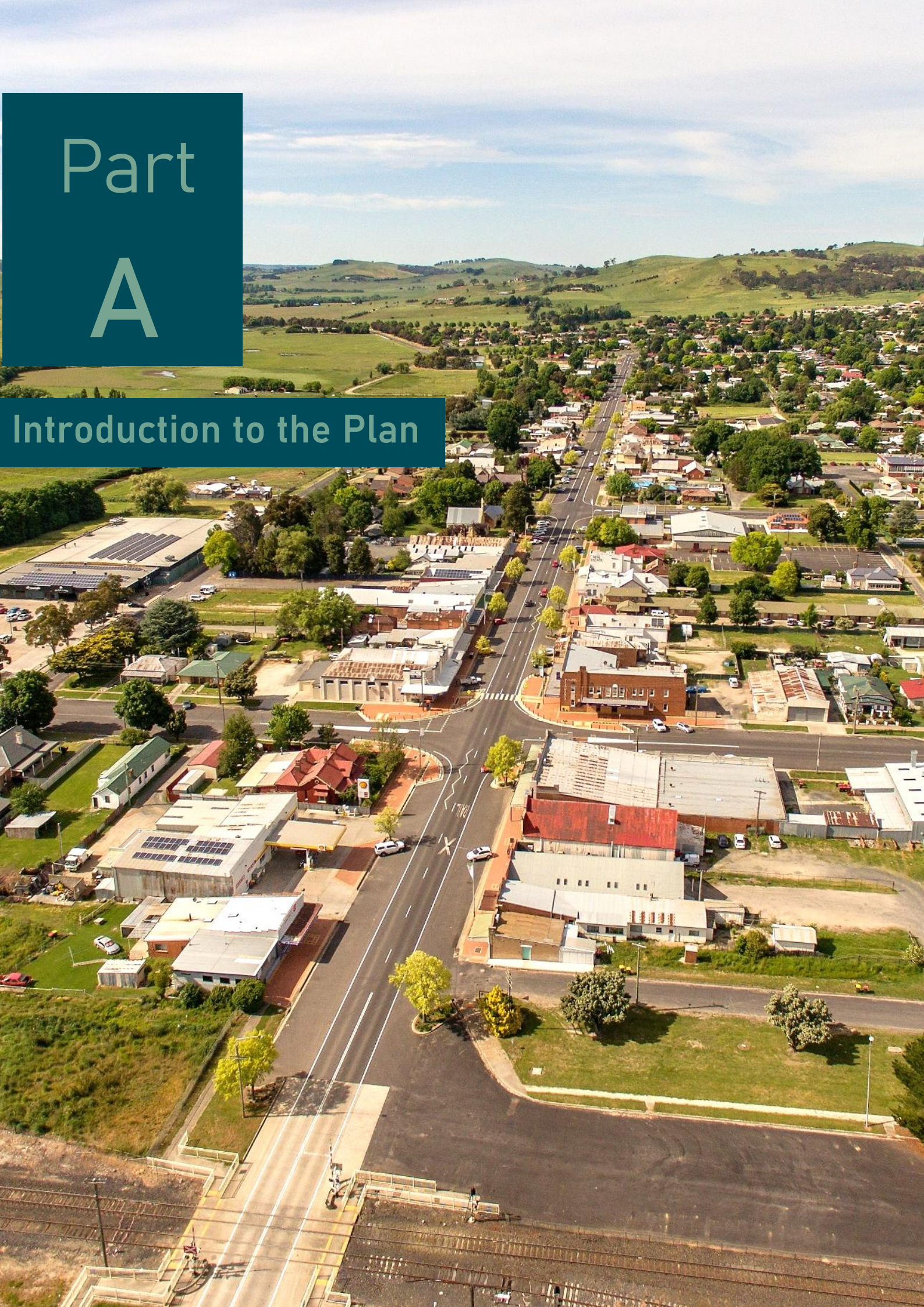


Part A

Introduction to the Plan

PART A

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Approved Date	Version Number	Summary of changes
26/05/2026	1	

A1 Introduction to Blayney Development Control Plan 2025

A1.1 Name of this Plan

This Plan is called the Blayney Shire Development Control Plan 2025 (Plan). The Plan has been prepared in accordance with Section 3.43 of the *Environmental Planning and Assessment Act 1979 No 203 (EP&A Act).*

A1.2 Date of Commencement of DCP

The Plan was adopted by Blayney Shire Council at its Ordinary Council Meeting held on the 26th May 2026 and came into effect on 9th June 2026, being the date notice of commencement of plan was published on the website of Blayney Shire Council.

A1.3 Land to which this DCP Applies

This Plan applies to all land within the Blayney Local Government Area (LGA).

A1.4 Purpose of the DCP

The principal purpose of this Plan is to provide guidance on the following matters:

a) Giving effect to the aims of Blayney Local Environmental Plan 2012 **(BLEP2012).**
b) Guiding development that is permissible under the **BLEP2012.**
c) Achieving the objectives of land use zones prescribed under **BLEP 2012.**

The controls included in this Plan should be considered as part of the design phase of new development and will be taken into consideration by Council as part of the assessment of new Development Applications. All controls are designed to improve the planning outcomes for the Blayney community.

Together, the BLEP and this Plan form the land use planning framework for the Blayney LGA.

A1.5 Relationship to other Planning Polices and Instruments

The Plan is to be read in conjunction with other environmental planning instruments, Blayney Shire Council Policies, codes and specifications such are relevant to specific aspects of a development proposal.

In the event of an inconsistency between this Plan and an environmental planning instrument applying to the same land, the provisions of the environmental planning instrument/s will prevail to the extent of the identified inconsistency.

In addition to the provisions of this Plan, Council must also make an assessment of those matters specified for consideration under Section 4.15 of the EP&A Act.

A1.6 Aims and Objectives of the DCP

The broad aims of this Plan are:

a) To implement and support the objectives of **BLEP2012.**
b) To provide clear and concise development guidelines for various forms of development.
c) To promote growth and development in the Blayney LGA and ensure it occurs in an orderly, environmentally friendly and sustainable manner.
d) To ensure positive planning outcomes are maximised for the benefit of the broader community.

The objectives for this DCP, relating to different types of development are included in the relevant parts of this Plan.

A1.7 Repeal of Existing DCP

In accordance with Clause 22(2) of the Environmental Planning and Assessment Regulation 2021 (EP&A Regulation), this Plan repeals the Blayney Shire Council Development Control Plan 2018.

A1.8 Structure of the DCP

The DCP has the following Parts:

PART A:	Introduction to the Plan
PART B:	Residential Development
PART C:	Commercial, Community and Industrial Development
PART D:	Subdivision
PART E:	Other Land Uses
PART F:	Environmental Management and Hazards
PART G:	Heritage Conservation

Depending on the nature of a proposed development, one or more Parts of the DCP may contain relevant controls that need to be considered.

The development controls contained within this Plan are structured to ensure that zone objectives of **BLEP2012** are achieved and the desired land use and/or built outcomes on a site are consistent with the corresponding objectives of the DCP. Therefore, the structure of each Part of this DCP includes:

Objectives / Performance Criteria
Are located either at the start of each Section or in the left-hand column of each Section and clearly state what the Council is seeking to achieve and the desired outcomes for each Part or Section. If the Acceptable Solution below requires variation, then the Objectives / Performance Criteria must be addressed.

Acceptable Solutions
Are located in the right-hand column of each Section and set the requirements for achieving an outcome consistent with the corresponding objectives for each Section.

A1.9 Variation to Controls

Council accepts that is not possible to plan for all development scenarios. The controls in this Plan have been designed to be as flexible as possible. However, there will inevitably be situations where strict compliance is not able to be achieved, and or alternate solutions are preferred.

Council may consent to a Development Application involving departure from a control contained within this DCP, but only where Council has considered a written request from the applicant that seeks to justify the departure by demonstrating:

a) Compliance with the particular control within this DCP is unreasonable or unnecessary in the circumstance of the case; and
b) The objectives of the particular control are met or sufficiently addressed; and
c) There are sufficient environmental planning grounds to justify the departure from the particular control within this DCP; and
d) The impact of the non-compliant proposal will not be significantly greater than a compliant proposal or may enhance the outcome.

A1.10 Developer Contributions

Development may create a need for public services and facilities, such as open space, community facilities, utilities and traffic management. Needs will vary depending on the scale of the proposal, the characteristics of the area, the relevant population and standard and capacity of existing services.

Section 7.11 and Section 7.12 of the *EP&A Act* is the principal legislation that enables Council to levy contributions for amenities and services. Contributions are imposed by way of a condition of consent and can be satisfied by:

a) Dedication of land.
b) A monetary contribution.
c) A material public benefit.
d) A combination of the above.

As an alternative to the payment of a Section 7.11 or Section 7.12 contribution, the applicant may offer to enter into a Voluntary Planning Agreement with Council. Acceptance of an offer is at the sole discretion of Council and where Council decides not to accept the offer, payment of the Section 7.11 or 7.12 contributions will be required.

Council and Central Tablelands Water are both able to levy contributions for amenities and services under Section 64 of the *Local Government Act 1993 (LGA 1993)* which enables both organisations to levy contributions towards water and sewerage utilities.

A1.11 Dictionary

This DCP adopts the definitions listed in the Dictionary within **BLEP2012.** In addition, some Parts or Sections of this DCP may have additional definitions to assist in interpreting or controlling specific issues / outcomes.

Note 1: *This DCP may refer to other documents. Where there are inconsistencies in definitions BLEP2012 will prevail.*

Note 2*: Terms used in this plan such as "should", "may" and "where possible" are not mandatory requirements or standards.*